

Circular Memo.No.664/Spl.C/A1/2004-1, G.A. (Spl.C) Dept., dt.06.12.2004 regarding reiteration of instruction in consultation with Vigilance Commission.

Subject Heading : Public Servants – Disciplinary cases in consultation with Vigilance Commission – Reiteration of instructions – Regarding.

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- Ref : 1. G.O.Ms.No.421, G.A. (SC.D) Dept., dt.03.08.1993.
2. G.O.Ms.No.147, G.A. (Spl.B) Dept., dt.01.05.2000.
3. U.O.Note No.235/Spl.B/2001-1, G.A. (Spl.B) Dept., dt.26.07.2001.

Instructions were issued in the G.O.2nd cited, among others, that all cases of corruption and other irregularities which are covered under para-6 of the Scheme of the Vigilance Commission issued in the G.O. first cited, irrespective of the fact whether Anti Corruption Bureau or other authorities including departmental authorities which enquired into the irregularities, should be referred to Vigilance Commission for its advice.

2. Though instructions were issued vide references 1st to 3rd cited, it is brought to the notice of the Government that various authorities including the Departments of Secretariat, quite often, do not refer all such cases to Vigilance Commission before passing final orders in disciplinary cases involving vigilance angle. This is more frequent in the offices of HODs, Govt. Undertakings and other institutions like Cooperative Bodies and Government Companies. This is leading to a situation where sometimes misplaced sympathy is shown by various authorities and guilty is not punished adequately commensurate with the guilt. This also has led to a situation where in similar type of lapses somebody escapes with lesser penalty, somebody gets more. To avoid such situation all departments of Government, HODs, Govt. Undertakings, Cooperative Bodies, Local Bodies etc., are hereby instructed to follow the instructions which are reiterated as follows :

- 1) All cases of misconduct on the part of public servants involving lack of integrity which have a vigilance angle viz., illegal gratification, bribery, causing loss to Government and unlawful gain to self or others and such other acts of corruption and criminal misconduct like misappropriation, cheating, fraud etc., should be referred to the Vigilance Commission for its advice.
- 2) Other cases of misconduct involving administrative lapses which have no vigilance angle, need not be referred to Commission for its advice.
- 3) In the event of doubt whether a case has a vigilance angle or not, may be decided at the level of Secretary to Government of the Department concerned. The Andhra Pradesh Vigilance Commission, will however, continue to be at liberty to call for any file at any time in terms of para-3 of G.O. 1st cited.
- 4) The Circular Memo. should be acknowledged.